

REQUEST FOR QUOTATION
GENERAL CONDITIONS
(Effective March 28, 2025)

QUOTATION SUBMISSION

Quotations and all information requested of the vendor shall be entered in the appropriate spaces. Failure to do so may disqualify the vendor's offer.

An authorized officer or employee of the bidder shall submit the quotation.

Quotations must be submitted electronically via the BidNet (MITN) system only, on, or before, the time and due date specified to be considered. E-mail, telegraphic or telephone quotations will **NOT** be accepted in response to electronic (RFQ) Request for Quotation.

RELATIONSHIP DISCLOSURE

It is required that any relationship (business or personal) to a City employee or official be disclosed. This includes employment or other professional engagements.

ALTERATION OF QUOTATION DOCUMENTS

Vendor **changes or alterations to the quotation documents, including the specification, may result in the quotation being considered non-responsive** and/or the bidder being debarred. The only authorized vendor changes to the quotation documents will be in the areas provided for the bidder's response including the "Comments" section of the quotation. Vendor must clearly identify product offered, and deviations from the specification. If a change or alteration to the quotation document is undetected, and the bidder is awarded the contract, the original terms, conditions, and specification in the authorized version of the quotation document will be applicable during the terms of the contract. Bidders are responsible for ensuring they have obtained all relevant documents including amendments, clarifications, changes, drawings, etc. as made available by the City.

PRICES

Prices quoted shall be for new products in current production unless otherwise specified. Where refurbished or discontinued items are offered they must be clearly identified as such.

Prices quoted shall be exclusive of any rebates due the City. Any rebates the City may be entitled to should be shown as a separate line item and include expiration date.

Corrections and/or modifications received after the quotation closing time specified will not be accepted.

Unit prices prevail.

All prices will be quoted F.O.B. DESTINATION, INCLUDE ALL DELIVERY AND ANY ADDITIONAL CHARGES, and remain in effect as specified in the quotation.

ESTIMATED QUANTITIES:

Quantities indicated are estimates for bid award purposes. The City has provided the best estimate of quantities and actual usage may increase or decrease. Vendor shall supply as per bid and hold the City harmless for increase or decreases in quantities.

AWARD

Unless otherwise stated in the quotation documents, the City cannot guarantee exclusivity of the contract for the proposed products or services.

Award of the quotation shall be based upon a combination of factors, including but not limited to, adherence to quotation requirements, references and any other factors that may be in the City's best interest.

The City reserves the right to reject any and all quotations, and to waive any defect or irregularity in quotes. The City reserves the right to accept and separate items in the quotation; and to accept the quotation that in the opinion of the City is to the best advantage and interest of the public we serve. The City also has the right to re-solicit quotations if it is deemed to be in the best interest of the City.

The City reserves the right to reject low quotations which have major deviations from our specification; to accept a higher quotation which has only minor deviations. By signing the quotation, the vendor agrees to accept a split award unless the awarded vendor clearly indicates that it takes exception. The quotation will be awarded to that responsible, responsive bidder whose quotation conforms to this solicitation, and will be most advantageous to the City, with regard not only to price, but also to availability of product, location and quality of product considered.

The City reserves the right to award all line items, to make no award or to award on an individual line item basis, whichever is deemed to be in the best interest of the City.

Time of delivery may be a consideration in the award.

TERMINATION

1. FAILURE TO PERFORM. The City may terminate an award for the failure to perform a term of the quotation specification to the satisfaction of the City. The City shall provide ten (10) days advance written notice to the awarded vendor for the failure to perform services or for the violation of any other term of the quotation specification. Unless futile or the violation is recurring, the City shall provide notice and the opportunity to cure the violation prior to termination. Such notice to cure shall be given in writing by first-class mail. In the event of a dispute, or in order to avoid interruption of service, the City may engage another to perform the work; and the awarded vendor shall be responsible for any costs the City incurs as a result of the awarded vendor's violation. The City may withhold payment to offset any damages the City incurs as a result of the awarded vendor's violation.

2. AT WILL. A quotation award may be terminated at will by the City upon a minimum of thirty (30) days prior written notice to the awarded vendor. In the event of termination as provided in this subsection, the awarded vendor will be compensated for all services performed and approvable reimbursable expenses from the inception date to the termination date provided the services performed and the expenses were provided in accordance with the quotation specifications.

Payment shall be made upon the awarded vendor delivering to the City all information and materials retained by the awarded vendor, affiliates, or subcontractors in performing the services described in the quotation specifications, whether completed or in progress.

3. MISREPRESENTATION. In addition, the City may reject this Quotation or cancel a contract with an awarded vendor if there is evidence of any misleading or intentionally fraudulent information or documents provided in connection with this Quotation.

SPECIFICATION

Brand names and numbers, when used, are for reference to indicate the character or quality desired, unless specifically stated "No Substitutes".

Alternate items of the same quality will be considered, provided your offer clearly describes the article. Offers for alternate items shall state the brand and number, or level or quality. A sample of the alternate item will be required to be sent to the City for inspection and approval, prior to award. When the bidder does not state brand, or level of quality, it is understood the offer is exactly as specified.

All products and services must be in accordance with all applicable federal, state and local statutes, rules, ordinances, etc.

All personnel must have the appropriate licenses with endorsements for the work performed.

In addition, any personnel driving a vehicle on City property must have a valid driver's license and have or exceed minimum statutory insurance requirements.

E-VERIFY

Any bidder, attesting to his bid by submission is affirming that the bidder has registered with, participates in and utilizes the E-Verify Program (or any successor program implemented by federal Department of Homeland Security and Social Security Administration to verify the work status of all newly hired employees employed by the bidder.

NON-IRAN LINKED BUSINESSES

The bidder certifies and agrees on behalf of the company submitting this quotation, the following: (1) that the bidder is duly authorized to legally bind the company submitting this quotation; (2) that the company submitting this quotation is not an "Iran linked business," as defined in Section 2(e) of the Iran Economic Sanctions Act, being Michigan Public Act No. 517 of 2012; and (3) that the bidder and the company submitting this quotation will immediately comply with any further certifications or information submissions requested by the City in this regard.

ASSIGNMENT OF AGREEMENT AND OTHER CONTRACTORS.

The Awarded Vendor shall not assign the Agreement or any part thereof without the written consent of the City.

PERIOD AGREEMENTS

No Exclusive Contract. The Awarded Vendor agrees and understands that the contract shall not be construed as an exclusive agreement and that the City may, at any time, secure similar or identical services at its sole option.

The quantities have been estimated for quotation award purposes and may be estimated based on past usage. The quantities may increase or decrease and the City makes no representation as to guarantee of usage. The quantities are estimated on an annual basis.

SAMPLES

Sample of articles, when required, shall be furnished free of any cost to the City. Samples of articles selected may be retained for future comparison. Samples which are not destroyed by testing, or which are not retained for future comparison will be returned upon request at the vendor's expense.

TAXES

If vendor **supplies tangible products only** to the City of Warren, **sales taxes** should not be included in your quotation as the City of Warren is sales tax exempt.

PAYMENT TERMS

The City's normal payment terms are 45 days in connection with cash discounts specified with this quotation. Time will be computed from the date of complete delivery of supplies or equipment as specified, or from the date correct invoices are received in the Office of the City Controller, if the latter is later than the date of delivery. Prices will be considered as net if no cash discount is shown.

MICHIGAN FREEDOM OF INFORMATION ACT (FOIA)

All costs incurred in the preparation and presentation of this quotation, in any way whatsoever, shall be wholly absorbed by the prospective firm. All supporting documentation shall become the property of the City of Warren unless requested otherwise at the time of submission. Michigan FOIA requires the disclosure, upon request, of all public records that are not exempt from disclosure under Section 13 of the Act, which are subject to disclosure under the Act. Therefore, confidentiality of information submitted in response to this Request for Quotations is not assured.

EXCEPTIONS TO THE QUOTATION SOLICITATION

Each bidder shall provide a list of Exceptions taken to this quotation. An Exception is defined as the vendor's inability to meet a mandatory requirement or exceed a requirement in the manner specified in the quotation solicitation. If the bidder provides an alternative solution when taking an Exception to a requirement, the benefits of this alternative solution must be explained. The City reserves the right to accept or reject any Exception; whichever is deemed to be in the best interest of the City.

WITHDRAWAL OF QUOTATION

Bidders may withdraw their quotations by submitting a written request over the signature of an authorized individual, to the Purchasing Department any time prior to the submission deadline. Bidders may thereafter submit a new quotation prior to the deadline. Modification or withdrawal of the quotation in any manner, oral, or written, will not be considered if submitted after the deadline.

INDEMNITY CLAUSE

To the extent permitted by law, the Contractor shall indemnify the City, its officers, employees, agents, and boards and commissions from and against any claim of liability; penalties; damages; attorney fees; professional advisors' fees; settlements; or other fees or expenses arising from or in connection with goods provided and services performed under this Invitation to Bid. The Contractor shall provide the Warren City Attorney's Office with all documents filed in any proceeding related to this Invitation to Bid in which any of the above-listed people or entities are named.

MICHIGAN LAW TO CONTROL.

The Parties intend for this Agreement to be construed in accordance with Michigan law as it exists at the time of this Agreement. Disputes arising out of this Agreement shall be litigated in the State court having jurisdiction over Macomb County, Michigan. If a dispute arises that requires resolution in Federal court, it shall be litigated in the United States District Court for the Eastern District of Michigan.

AMERICAN WITH DISABILITIES ACT

Whenever applicable, the Contractor shall perform work in accordance with the American with Disabilities Act, 42 USC § 12101 et seq, (including corresponding rules, regulations, and design standards), the Persons with Disabilities Civil Rights Act, MCL 37.1101 et seq. and City ordinances relating to accessibility.

EMPLOYEE RESTRICTIONS

The City of Warren Code of Ordinances restricts sex offenders from local parks. Any person who is a sexual offender may not be employed or engaged to provide services on the park property.

EQUAL OPPORTUNITY CLAUSE

This contract requires adherence to the equal opportunity clause, 41 CFR § 60-1.4.

APPENDIX A OF TITLE VI PLAN

During the performance of this contract, the contractor, for itself, its assignees, and successors, in interest (hereinafter referred to as the "contractor") agrees, as follows:

1. COMPLIANCE WITH REGULATIONS. The contractor shall comply with Regulations relative to nondiscrimination in Federally-assisted programs of the Department of Transportation, Title 49, Code of Federal Regulations, Part 21, as they may be amended from time to time (hereinafter referred to as the Regulations), which are herein incorporated by reference and made a part of this contract.

2. NONDISCRIMINATION. The contractor, with regard to the work performed by it during the contract, shall not discriminate on the grounds of race, color, sex, or national origin in the selection, retention, and treatment of subcontractors, including procurements of materials in the discrimination prohibited by Section 21.5 of the Regulation, including employment practices when the contractor covers a program set for in Appendix B of the Regulations.

3. SOLICITATION FOR SUBCONTRACTS, INCLUDING PROCUREMENTS OF MATERIALS AND EQUIPMENT. In all solicitations, either by competitive quotation, or negotiation, made by the contractor for work to be performed under a subcontract, including procurements of materials or leases of equipment, each potential subcontractor or supplier shall be notified by the contractor of the contractor's obligations under the contract and the Regulations relative to nondiscrimination on the grounds of race, color, sex, or national origin.

4. INFORMATION AND REPORTS. The contractor shall provide all information and reports required by the Regulations, or directives issues pursuant thereto, and shall permit access to its books, records, accounts, other sources of information, and its facilities as may be determined by the State Highway Department or the Federal Highway Administration to be pertinent to ascertain compliance with such Regulations or directives. Where any information required of a contractor is in the exclusive possession of another who fails or refuses to furnish this information, the contractor shall so certify to the State Highway Department or the Federal Highway Administration, as appropriate, and shall set forth what efforts it has made to obtain the information.

5. SANCTIONS FOR NONCOMPLIANCE. In the event the contractor's noncompliance with the nondiscrimination provisions of this contract, the State Highway Department shall impose such contract sanctions as it or the Federal Highway Administration may determine to be appropriate, including, but not limited to:

- a. Withholding payments to the contractor under the contract until the contractor complies and/or
- b. Cancellation, termination or suspension of the contract, in whole or in part.

6. INCORPORATION OF PROVISIONS. The contractor shall include provisions of paragraphs (1) through (6) in every subcontract, including procurement of material and leases of equipment, unless exempt by the Regulations, or directives issued pursuant thereto. The contractor shall take such action with respect to any subcontract or procurement as the State Highway Department or the Federal Highway Administration may direct as a means of enforcing such provisions including sanctions for noncompliance: provided, however, that, in the event a contractor becomes involved in, or is threatened with, litigation with a subcontractor or supplier

as a result of such direction, the contractor may request the State Highway Department to enter into such litigation to protect the interests of the State, and, in addition, the contractor may request the United States to enter into such litigation to protect the interests of the United States.

SAFETY DATA SHEETS

IMPORTANT: All City of Warren purchases require **SAFETY DATA SHEETS** where applicable, in compliance with the Occupational Safety and Health Administration (OSHA) Hazard Communication Standard.

THE ABOVE GENERAL CONDITIONS ARE CONSIDERED IN FORCE UNLESS SPECIFICALLY ADDRESSED IN ANOTHER SECTION OF THE QUOTATION DOCUMENT